

THE UNIVERSAL HOUSE OF JUSTICE

2000-11-26

To all National Spiritual Assemblies

1 dear b ahá'í f riends,

on 25 march 1987 you were sent a document titled "A codification

2 of the law of buqúqu'lláh," prepared by the research department at the

3 bahá'í world center; this document is cross-referenced to the compila-

4 tion "buqúqu'lláh, The right of god."345-1 At the request of the universal

5 house of justice the codification has recently been revised, to incorporate

6 points made in certain of the quotations provided in the supplement to the
compilation that was issued on 12 october 1992.

7 we now enclose a copy of the new revision of the codification for circu-

8 lation to the friends, to further assist in deepening their understanding of

9 the law of buqúqu'lláh.

10 with loving b ahá'í greetings,

Department of tHe secretariat

A CODIFICATION OF THE LAW OF BUQÚQU'LLÁH

prepared by the r esearch d epartment

11 of the b ahá'í w orld center in 1987,

12 and revised in 1999, at the request of the u niversal h ouse of j ustice

Preamble

13 buqúqu'lláh (The right of god) is a great law (7)345-2 and a sacred institu-

14 tion (72).345-3 laid down in the most holy book (the kitáb-i-Aqdas), it is

15 one of the key instruments for constructing the foundation and supporting

16 the structure of the world order of bahá'u'lláh. it has far-reaching rami-

17 345-1. The referenced compilation on buqúqu'lláh was released on 4 july 1985,

18 and a new compilation entitled "buqúqu'lláh: The right of god" was issued by

19 the universal house of justice in April 2007 .
20 345-2. The numbers in parentheses refer to the paragraphs of the compilation on
21 buqúqu'lláh issued by the universal house of justice.
22 345-3. reference to the extract number in parentheses has been removed from the

first sentence in the 2007 revision to the codification.345.1

345 2
345 3
346 2000–2001 • The Twelve Month Plan
347 755fications that extend from promoting the welfare of the individual to but-
348 tressing the authority and extending the activity of the head of the faith. in
349 providing a regular and systematic source of revenue for the central institu-
350 tion of the cause, bahá'u'lláh has assured the means for the independence
351 and decisive functioning of the world center of his faith.

by identifying this law as “The right of god,” bahá'u'lláh has reem-

352 phasized the nature of the relationship between human beings and their creator as a
covenant based on mutual assurances and obligations; and, by
353 designating the central Authority in the cause, to which all must turn, as
354 the recipient of this right, he has created a direct and vital link between
355 every individual believer and the head of his faith that is unique in the
356 structure of his world order. This law enables the friends to recognize the
357 elevation of their economic activity to the level of divine acceptability; it is
358 a means for the purification of their wealth and a magnet attracting divine

blessings. The computation and the payment of buqúqu'lláh, within the

359 general guidelines set forth, are exclusively a matter of conscience between the
individual and god (8, 104); demanding or soliciting the buqúqu'lláh
360 is prohibited (8, 9, 38, 71, 96, 104): only appeals, reminders and exhortations of a
general nature, under the auspices of the institutions of the faith, are permissible (38, 70, 99,
104, 107). That the observance and en-
361 forcement of this law, so crucial to the material well-being of the emerging
362 bahá'í commonwealth, should thus have been left entirely to the faith and
363 conscience of the individual gives substance to, and sheds light on, what the beloved
master calls the spiritual solution to economic problems. indeed,

364 the implications of the law of ḥuqúqu'lláh for the realization of a number
365 of the principles of the faith, such as the elimination of extremes of wealth
366 and poverty, and a more equitable distribution of resources, will increas-ingly
become manifest as the friends assume in ever greater measure the
367 responsibility for observing it.

The fundamentals of the law of ḥuqúqu'lláh are promulgated in the

368 kitáb-i-Aqdas. further elaborations of its features are to be found in other
369 writings of bahá'u'lláh, in Tablets from 'Abdu'l-b ahá and in letters from
370 questions raised by the friends. All these major references have been com-
371 separately published. A study of that compilation makes it clear that the application
of the law has been progressive, and will continue to be so, as its ramifications and
subsidiary rulings are elucidated.^{345.4}

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346 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e
347 756The following is a preliminary attempt at codifying the information
348 in the writings on the subject of ḥuqúqu'lláh. it should be emphasized,
349 however, that the friends should not attempt to read into it an element
350 of rigidity or total comprehensiveness. The questions put to bahá'u'lláh,
351 the master and Shoghi effendi were from friends residing in places and
352 times with infinitely simpler economic systems and relationships than those
353 which obtain today. what can be learned from them are clear guiding prin-

ciples whose application to changing and more complex conditions must

354 be considered. The subject will undoubtedly occupy the universal house
355 of justice in evolving legislation, as necessary, for a long time to come. As

the fourth epoch of the formative Age of our faith unfolds before the

356 eyes of an increasingly watchful humanity, the universal assumption of the
obligation of ḥuqúqu'lláh by the friends will be a clear sign of attaining to
357 a new level of spiritual maturity by the community of the greatest Name
358 throughout the world.

A Bounty Granted by God

god, while being wholly independent of all created things, has in his

359 bounty given us this law (7, 10, 63), for the progress and promotion of the

cause depend on material means (1). obedience to this law enables the

360 believer to be firm and steadfast in the covenant (63), provides a reward in
361 every world of the worlds of god (7), and is a unique test of true faith (62).

362 The puqúqu'lláh is to be offered joyfully and without hesitation (2, 9,
363 32). when the puqúqu'lláh is offered in this spirit it will impart prosperity
364 and protection to the friends, purify their worldly possessions (20, 31, 42,
365 46, 48, 100), and enable them and their offspring to benefit from the fruits of their
endeavors (48).

Determining the Puqúqu'lláh

366 everything that a believer possesses, with the exception of certain specific
367 items, is subject once and only once to the payment of puqúqu'lláh.

368 A. exempt from assessment to puqúqu'lláh are:

1 The residence and its needful

2 345-4 furnishings (11).

2 The needful business and agricultural equipment which produce
3 income for one's subsistence (12, 67, 68).

4 345-4. See iii.c.1.345.6

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347 757b. payment falls due:

1 puqúqu'lláh is payable as soon as a person's assessable possessions

reach or exceed the value of 19 mithqáls of gold (18, 19, 30). [19

2 mithqáls equal approximately 2.2 troy ounces, or approximately 69.2 grams (87, 105,
110).]

a) The amount to be paid is 19% of the value of the as-

3 sessable property (10, 14).

b) The payment is due on whole units of 19 mithqáls of

4 gold (15).

2 puqúqu'lláh is payable on further units of 19 mithqáls of gold

3 when subsequently acquired possessions, after the deduction of the annual expenses,
raise the value of the assessable property sufficiently. Among the expenses to be deducted
are:

4 a) The general expenses of living (65, 66, 69, 78).

b) losses and expenses incurred on the sale of possessions

5 (103).

c) Sums which are paid to the state, such as taxes and

6 duties (78).

3 when a person receives a gift or bequest it is to be added to his

or her possessions and augments the total value in the same way

4 as does an excess of annual income over expenditure (111).

4 i f a property increases in value, *ḥuqūqullāh* is not payable on

5 that increase until it is realized, e.g., on the sale of the property.

5 i f possessions decrease, such as through the expenses of a year

exceeding the income received, *ḥuqūqullāh* falls due again only

6 after the loss has been made good and the total value of one's assessable possessions
is augmented (15–19, 30, 65–68, 78, 108, 111).

6 The payment of debts takes precedence over the payment of *ḥuqūqullāh* (22).

7 . The payment of *ḥuqūqullāh* is dependent on the person's finan-

8 cial ability to meet his obligations (24).

8 o n the death of a believer, the completion of his/her payment of

9 *ḥuqūqullāh* is accomplished in the following manner:

a) The first charge on the estate is the expense of burial

10 (22).

11 b) Secondly, the debts of the deceased must be paid (13).

12 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

13 758c) The *ḥuqūqullāh* still due on the property should then

be paid. in establishing the value of the property on

which *ḥuqūq* has not already been paid, the follow-

ing are among the deductions to be made: expenses of

14 burial (22), debts of the deceased (13), loss of value of the assets when realized (103),
and expenses incurred

15 in realizing the assets (103).

16 c. Further notes on determining ḥuqúqu'lláh:

1 it is left to the individual to decide which expenses are to be re-

2 garded as "necessary" and therefore deductible in computing the annual accretion to
savings, and which furnishings of the house-

3 hold are to be regarded as "needful" and therefore exempt from the payment of
ḥuqúqu'lláh (57, 65–67, 69, 78, 80, 104–106,

4 112).

2 Although references are made to annual payments of ḥuqúqu'lláh,

3 the time and method of payment are left to the discretion of the individual believer.
There is, therefore, no obligation to liquidate

4 one's assets in haste in order to fulfill one's current obligations to

5 ḥuqúqu'lláh (103).

3 Husband and wife are free to decide whether they want to honor

4 their ḥuqúqu'lláh obligations jointly or individually (109, 110).

4 The account of ḥuqúqu'lláh should be kept separate from other

5 contributions inasmuch as the disposition of the funds of the ḥuqúqu'lláh is subject to
decision by the central Authority in

the cause to which all must turn, whereas the purposes of the

contributions to other funds may be determined by the donors

6 themselves.

5 Payment of the ḥuqúqu'lláh has priority over making contribu-

tions to other funds of the faith (78, 79, 97, 100), as well as over

the cost of pilgrimage (31). it is, however, left to the discretion

of the believer whether or not to treat contributions to the fund

as an expense when arriving at the value of his or her property in

6 calculating the sum due to be paid as ḥuqúqu'lláh (105).

7 d. Additional notes, based on the first supplement to the compilation:

1 whereas a believer has discretion to decide whether to treat his

or her contributions to the funds of the faith as an expense, or

make them only out of money on which ḥuqúqu'lláh has been

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3 759 paid, he or she also has the discretion to treat some contributions

in one way and some in the other. (Supp. 8)

2 no one believer cannot discharge the obligation of another to pay

ḥuqúqu'lláh, nor can a payment to ḥuqúqu'lláh be earmarked

for any purpose or be made in honor of anyone. (Supp. 10)

3 The law of ḥuqúqu'lláh imposes an obligation only on indi-

4 vidual believers, not on bahá'í institutions or corporate bodies.

(Supp. 11)

4 Although the law provides a certain leeway in the timing of the payment of ḥuqúqu'lláh, it should preferably be paid by a be-

5 liever during the course of his or her life whenever it falls due, and the only payment to ḥuqúqu'lláh which should need to be

provided for by will is such additional liability as may be found

to exist when the believer's affairs are reckoned up as at the date

of death. (Supp. 12)

5 Each believer should learn not only how to calculate ḥuqúqu'lláh

during the course of his or her life, but also how to provide for the

payment of the balance remaining at the date of death. (Supp. 12)

Applicability of the Law of Ḥuqúqu'lláh

6 for many decades the sacred law of ḥuqúqu'lláh had been applied only to

7 the believers from the middle east. The worldwide application was insti-

8 of the holy year marking the hundredth anniversary of the Ascension of

9 bahá'u'lláh.

10 Payment of Ḥuqúqu'lláh The ḥuqúqu'lláh is normally paid to the Trustee of ḥuqúqu'lláh, his depu-

11 ties, or their appointed representatives (35, 58). These persons issue re-

12 cepts and forward the funds to the bahá'í world center (56).

Management of the Puqúqu'lláh

13 decisions on the necessary ordinances concerning puqúqu'lláh (81, 100),
14 as well as on its disposition, lie within the sole jurisdiction of the central
15 Authority in the cause. The puqúqu'lláh can be employed for charitable
16 purposes (62, 65, 75), or for other purposes useful to the cause of god

(77, 78).345.10

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Message to the ASEAN Youth Conference in Thailand

[signed: The Universal House of Justice]